

		Therefore, the court will deny the motion without prejudice to the Plaintiff refiling this motion with the proper submissions. The court clerk shall give notice of this ruling.
5	Ferron vs. Lucidi Construction, Inc. 30-2022-01268483	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Modify the Appellate Record</u> Defendant Hall's Decking Coating, Inc.'s Motion to Modify Designation of Record Filed By Plaintiff is DENIED. <u>Pending Motion</u> Defendant Hall's Deck Coating, Inc. (Defendant Hall's) moves the modify the designation of record filed by Plaintiff Melissa S. Ferron in connection with Plaintiff's appeal of this action. <u>Modifying the Appellate Record</u> The California Rules of Court provide that "[u]nless the superior court orders otherwise on a motion . . ., this rule governs if: (A) The appellant elects to use an appendix under this rule in the notice designating the record on appeal under rule 8.121." (Cal. Rules of Court, rule 8.124(a)(1).) On March 4, 2026, Plaintiff and Appellant Melissa S. Ferron filed a Notice Designating Record on Appeal indicating that she was choosing to use an appendix under Rule 8.124. (See ROA #1041.) Defendant Hall's has not shown good cause to override Plaintiff's election to proceed by appendix. Plaintiff's Counsel has represented that the appendix will consist of accurate copies of documents in the Superior Court file and intends to comply with his obligations to provide accurate copies. (See Decl. of Brian P. Worthington in Opp'n to Def. Hall's Mot. to Modify Designation of Record Filed by Pltf., ¶ 3.)

		Defendant argues that the complicated procedural history of this litigation makes preparation of the appendix difficult and time-consuming. However, Plaintiff's Counsel has provided evidence that he will be able to undertake preparing such a complicated appendix. (See <i>id.</i>, ¶¶ 2-6.) Plaintiff has the right to elect whether to use a clerk's transcript or an appendix. No good cause has been shown to deprive Plaintiff of this right. The court will deny the motion. Plaintiff shall give notice of this ruling.
6	Hodgson vs. Haase 30-2024-01393270	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Strike</u> Defendant Kenneth Craig Haase's Motion to Strike Portions of Plaintiff's Original Complaint is DENIED. Defendant Kenneth Craig Haase seeks to strike "improper, irrelevant, and legally defective allegations and requests for relief contained in Plaintiff's Original Complaint." (Mot. to Strike Portions of Pltf.'s Original Compl. at p. 2:3-4). "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322.) Here, Defendant notice of motion to strike fails to identify the paragraphs and/or causes of action of the Complaint that he wishes to strike. Without this information, Plaintiff cannot adequately respond to the motion to strike and the court cannot determine whether and which portions of the Complaint are "improper, irrelevant, and/or legally defective." The court will deny the motion to strike.